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File No.: EXP202306156

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 25, 2023. The complaint is directed against an individual identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that the respondent has installed a surveillance camera aimed at a servitude established over a path leading to the homes of several neighbors in the area, without the authorization of the other owners and affected parties by the servitude.

She provides images from the camera (Annex I Documentary Evidence).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was duly forwarded to the respondent in a timely manner, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On July 24, 2023, a written response was received from the respondent, arguing the following in relation to the described facts.

- That they are responsible for the installation of the camera(s), providing a completed model of the Responsible Declaration.
- They provide an image of the sign placed on the facade of the security company that installed the system in question.
- They provide photographs of the cameras installed on the facade of their home.

FOURTH: On July 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On July 17, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article(s) 5.1 c) GDPR and 13 of the GDPR, classified under Article 83.5 a) and b) of the GDPR.

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SIXTH: The notification of the aforementioned initiation agreement was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). According to the database of this AEPD, it is confirmed by the Official Postal and Telegraph Service that the Initiation Agreement was on 09/05/2014 at 12:02, with C.C.C. as the signer.

SEVENTH: On September 11, 2024, a written submission was received from the respondent, presenting various photographs via written registration (doc. 1-4).

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this proceeding,

PROVEN FACTS

First. The facts arise from the complaint dated 04/25/23, through which the presence of camera(s) aimed at the vicinity of a transit path was reported.

A documentary annex is provided showing the presence of two cameras (Frames) that confirm their installation.

Second. Ms. B.B.B., with NIF ***NIF.1, is identified as the main responsible party for the installation of the system, who does not deny the installation of the cameras.

Third. It is not evidenced that the system is properly signposted informing that it is a , indicating the purpose of the system or how to exercise rights under the current legal framework.

The only sign installed indicating that it is a video-monitored area is from the company Securitas Direct, which does not indicate the responsible party or how to exercise rights.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

In the present case, we proceed to examine the complaint dated 25/04/23, through which the "presence of video surveillance cameras" that may be monitoring a transit path without legal basis for doing so is brought to this AEPD. A special type of path is the "Serventía," which we find in the Canary Islands, Asturias, and Galicia as a point of reference. It constitutes a path or portion of traversable land used by neighboring properties, which runs through privately owned land of each of them, but is not exclusively owned by any of the owners of the neighboring estates who hold the right of way, with the purpose of accessing a public road.

Article 5.1 c) of the GDPR states the following:

Personal data shall be: "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of this type of device must have the mandatory informational sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring their transit areas without justified cause.

Furthermore, this type of device cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, in accordance with the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth remembering that even in the case of a "simulated" camera, it must be preferentially oriented towards private space, as it is considered that this type of device can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

Individuals cannot install devices to capture images of public space and/or the transit of third parties, except in cases permitted by the regulations.

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From the photographs provided on 11/09/24, it is inferred that one of the cameras is proportionately oriented towards the access door to the garage area, considering the measure adequate for the purpose of protecting the property and its belongings.

The respondent may install security cameras aimed at protecting their private residence, without needing the authorization of the other neighbors who use the transit path, provided that these are exclusively oriented towards their private property (e.g., access doors, garage entrance, etc.).

The second camera is installed above an access door to the residence, in such a way that the angle of orientation allows inferring that it is limited to what is necessary for the protection of access to the residence, not being considered invasive of the right of way.

Article 4.3 of the Instruction of November 8, from the Spanish Agency for Data Protection, on the processing of personal data for surveillance purposes through camera or video camera systems states:

“The cameras and video cameras installed in private spaces may not capture images of public spaces unless it is essential for the intended surveillance purpose, or it is impossible to avoid it due to their location. In any case, any unnecessary data processing for the intended purpose must be avoided” (*the underlining belongs to this AEPD).

As a recommendation, it is emphasized that the measure should be proportionate to the intended purpose, and excessive capture of the path (serventía) is not permitted, especially since the residence has a garage, so the angle of the camera should be oriented as close as possible to the door of the garage, avoiding capturing the entire width.

Therefore, based on the images provided by the respondent, excessive capture of the path (serventía) has not been demonstrated, which is why such an infringement of Article 5 of the GDPR is not confirmed.

IV

Upon examining the images provided by the respondent, it is noted that they do not have an informational sign in accordance with data protection regulations, as they only have that of the installing company.

The informational sign, located in a visible area, must indicate the responsible party for the processing, the purpose of the processing, and how to exercise the rights (e.g., an address to which one can effectively direct inquiries).

Article 13 of the GDPR “Information to be provided when personal data is obtained from the data subject”

1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide, at the time of obtaining such data,

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all the information indicated below: a) the identity and contact details of the data controller and, where applicable, of their representative; b) the contact details of the data protection officer, if applicable; c) the purposes of the processing for which the personal data is intended and the legal basis for the processing (...).

Article 22, section 4 of LO 3/2018 (December 5) states:

The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an information device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the information device (*the bold text belongs to this agency).

Article 72, section 1 of LOPDGGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements “shall expire after three years” and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

V

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third section that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file of actions shall be closed.

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The provisions of the second and third paragraphs of section 2 of this article shall apply in this case."

VI

Adoption of measures

In the present procedure, it is established based on the examined evidence that a device(s) has been installed in an area that is in "conflict" between the parties, which lacks a legally compliant information sign, as it does not inform about the purpose of the system or how to exercise the rights.

In this resolution, the manner in which the informative sign must be presented to be considered legally compliant has been established, referring to what is stated in the previous legal basis.

The text of the resolution has established what the infringements committed were and the facts that led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to Ms. B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 letter b) of the GDPR.

SECOND: TO ORDER THE FILING regarding the infringement of Article 5.1 c) GDPR, as the commission of the infringement has not been established.

THIRD: TO ORDER Ms. B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ONE MONTH from the date this resolution becomes final and enforceable, to prove compliance with

the following measures:

- To prove, if applicable, the placement of a legally compliant information sign, duly completed (e.g., by providing a photograph with date and time).

FOURTH: TO NOTIFY this resolution to Ms. B.B.B.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

1403-16012024

Olga Pérez Sanjuán

Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency of the AEPD.

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